

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 8, 2026

Time: 2:00 PM

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1	Zambrano v. Eleganza Tiles, Inc.	Before the Court is plaintiff Fabian Zambrano's unopposed motion to set aside dismissal. As set forth below, the motion is GRANTED. The court has the discretion to relieve a party "upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Relief under section (b) may be based on an "attorney affidavit of fault" in which event relief is mandatory. Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney. (<i>Standard Microsystems Corp. v. Winbond Electronics Corp.</i> (2009) 179 Cal.App.4th 868, 897, disapproved on other grounds in <i>Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC</i> (2015) 61 Cal.4th 830, 845.) Here, Plaintiff's counsel submitted a declaration stating that the failure to appear at the 10/24/25 hearing where the Court dismissed the action was based on his inability to establish internet connection while he was on a family vacation in Big Bear. (Cojocnean Decl. ¶¶ 7-8.) Plaintiff has shown entitlement to mandatory relief. The motion is therefore GRANTED. Plaintiff shall give notice of this ruling.